

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4131

By: Fetgatter

AS INTRODUCED

An Act relating to counties and county officers;
amending 19 O.S. 2021, Section 339, as last amended
by Section 1, Chapter 157, O.S.L. 2025 (19 O.S. Supp.
2025, Section 339), which relates to the general
powers of county commissioners; permitting county
commissioners or county budget board to designate
money from general county funds for social services
programs; clarifying counties are not required to
provide services; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 19 O.S. 2021, Section 339, as last
amended by Section 1, Chapter 157, O.S.L. 2025 (19 O.S. Supp. 2025,
Section 339), is amended to read as follows:

Section 339. A. The board of county commissioners shall have
power:

1. To make all orders respecting the real property of the
county, to sell the public grounds of the county and to purchase
other grounds in lieu thereof; and for the purpose of carrying out
the provisions of this section it shall be sufficient to convey all
the interests of the county in those grounds when an order made for
the sale and a deed is executed in the name of the county by the

1 chair of the board of county commissioners, reciting the order, and
2 signed by the chair and acknowledged by the county clerk for and on
3 behalf of the county;

4 2. To audit the accounts of all officers having the care,
5 management, collection or disbursement of any money belonging to the
6 county or appropriated for its benefit;

7 3. To construct and repair bridges and to open, lay out, and
8 vacate highways; provided, however, that when any state institution,
9 school, or department shall own, lease, or otherwise control land on
10 both sides of any established highway, the governing board or body
11 of the same shall have the power to vacate, alter, or relocate the
12 highway adjoining the property in the following manner:

13 If it should appear that it would be to the best use and
14 interest of the institution, school, or department to vacate, alter,
15 or relocate such highway, the governing board or body shall notify
16 the board of county commissioners, in writing, of their intention to
17 hold a public hearing and determine whether to vacate, alter, or
18 relocate the highway, setting forth the location and terminals of
19 the road, and all data concerning the proposed right-of-way if
20 changed or relocated, and shall give fifteen (15) days' notice of
21 the hearing by publication in some newspaper in the county or
22 counties in which the road is located, and the hearing shall be held
23 at the county seat of the county in which the road is located, and
24 if a county line road, may be heard in either county. At the

1 hearing testimony may be taken, and any protests or suggestions
2 shall be received as to the proposed measure, and at the conclusion
3 thereof if the governing board or body shall find that it would be
4 to the best use and interest of the institution, school, or
5 department, and the public generally, they may make an appropriate
6 order either vacating, altering or relocating the highway, which
7 order shall be final if approved by the board of county
8 commissioners. The institution, school, or department may by
9 agreement share the cost of changing any such road. No property
10 owner shall be denied access to a public highway by the order;

11 4. To recommend or sponsor an employee or prospective employee
12 for job-related training and certification in an area that may
13 require training or certification to comply with state or federal
14 law as such training or certification is provided by the Department
15 of Transportation, the Federal Highway Administration, or any other
16 state agency, technology center school, or university;

17 5. To determine the years of service required for full-time
18 county employees to qualify for a continuing education program.
19 Such programs may consist of courses offered by colleges and
20 universities that are members of The Oklahoma State System of Higher
21 Education as well as any other in-state or out-of-state programs or
22 courses which are relevant to the employee's responsibilities as
23 approved by the county commissioners. Such programs shall require
24 that employees maintain at least an A or B average in order to

1 qualify for one hundred percent (100%) reimbursement. Employees who
2 maintain passing or satisfactory grades shall qualify for seventy-
3 five percent (75%) reimbursement under such programs. Such programs
4 shall require that documentation from colleges and universities
5 regarding courses completed, credits earned, and tuition charged be
6 submitted to a board of county commissioners within ninety (90) days
7 after the completion of courses. General applications and request
8 forms for such programs shall be submitted to a board of county
9 commissioners or an appropriate human resources department prior to
10 the conclusion of a county's current fiscal year. Employees who
11 elect to participate in such programs shall continue to meet the
12 full responsibilities of their positions, and participation shall
13 not interfere with availability for scheduled work or negatively
14 affect work performance. In order to be eligible for participation
15 in such programs, employees shall not have been formally disciplined
16 within one (1) year prior to submitting their program application.
17 A board of county commissioners shall be authorized to establish a
18 program requiring a one-year commitment of service to the county
19 from individuals who participate in such programs. Under such
20 programs, employees shall only be eligible to receive tuition
21 reimbursements in exchange for employment with the county lasting at
22 least one (1) year;

23 6. Until January 1, 1983, to furnish necessary blank books,
24 plats, blanks, and stationery for the clerk of the district court,

1 county clerk, register of deeds, county treasurer, county judge,
2 sheriff, county surveyor, county attorney, justices of the peace,
3 and constables, to be paid for out of the county treasury; also a
4 fireproof vault sufficient in which to keep all the books, records,
5 vouchers, and papers pertaining to the business of the county;

6 7. To set off, organize, and change the boundaries of townships
7 and to designate and give names therefor; provided, that the
8 boundaries of no township shall be changed within six (6) months
9 next preceding a general election;

10 8. To lease tools, apparatus, machinery, or equipment of the
11 county to another political subdivision or a state agency. The
12 Association of County Commissioners of Oklahoma and the Oklahoma
13 State University Center for Local Government Technology together
14 shall establish a system of uniform rates for the leasing of such
15 tools, apparatus, machinery, and equipment;

16 9. To jointly, with other counties, buy heavy equipment and to
17 loan or lease such equipment across county lines;

18 10. To develop personnel policies for the county with the
19 approval of a majority of all county elected officers, as evidenced
20 in the minutes of a meeting of the board of county commissioners or
21 the county budget board;

22 11. To purchase, rent, or lease-purchase uniforms, safety
23 devices, and equipment for the officers and employees of the county.
24 The county commissioners may pay for any safety training or safety

1 devices and safety equipment out of the general county funds or any
2 county highway funds available to the county commissioners;

3 12. To provide incentive awards for safety-related job
4 performance. However, no employee shall be recognized more than
5 once per calendar year and the award shall not exceed the value of
6 Two Hundred Fifty Dollars (\$250.00); further, no elected official
7 shall be eligible to receive a safety award;

8 13. To provide for payment of notary commissions, filing fees,
9 and the cost of notary seals and bonds;

10 14. To do and perform other duties and acts that the board of
11 county commissioners may be required by law to do and perform;

12 15. To make purchases at a public auction pursuant to the
13 county purchasing procedures in subsection D of Section 1505 of this
14 title;

15 16. To deposit interest income from highway funds in the
16 general fund of the county;

17 17. To submit sealed bids for the purchase of equipment from
18 this state, or any agency or political subdivision of this state;

19 18. To utilize county-owned equipment, labor, and supplies at
20 their disposal on property owned by the county, public schools, two-
21 year colleges, or technical branches of colleges that are members of
22 The Oklahoma State System of Higher Education, the state and
23 municipalities according to the provisions of Section 36-113 of
24 Title 11 of the Oklahoma Statutes. Cooperative agreements may be

1 general in terms of routine maintenance or specific in terms of
2 construction and agreed to and renewed on an annual basis. Work
3 performed pursuant to Section 36-113 of Title 11 of the Oklahoma
4 Statutes shall comply with the provisions of this section;

5 19. To enter into intergovernmental cooperative agreements with
6 the federally recognized Indian tribes within this state to address
7 issues of construction and maintenance of streets, roads, bridges,
8 and highways exclusive of the provisions of Section 1221 of Title 74
9 of the Oklahoma Statutes;

10 20. To execute hold harmless agreements with the lessor in the
11 manner provided by subsection B of Section 636.5 of Title 69 of the
12 Oklahoma Statutes when leasing or lease-purchasing equipment;

13 21. To accept donations of rights-of-way or right-of-way
14 easements pursuant to Section 381 et seq. of Title 60 of the
15 Oklahoma Statutes;

16 22. To establish by resolution the use of per diem for specific
17 purposes in accordance with the limitations provided by Sections
18 500.8 and 500.9 of Title 74 of the Oklahoma Statutes;

19 23. To apply to the Department of Environmental Quality for a
20 waste tire permit to bale waste tires for use in approved
21 engineering projects;

22 24. To enter into the National Association of Counties (NACo)
23 Live Healthy Prescription, Health and Dental Discount Program;

1 25. To work with federal, state, municipal, and public school
2 district properties in an effort to minimize cost to such entities;

3 26. To work with ambulance service districts established under
4 Section 9C of Article X of the Oklahoma Constitution in an effort to
5 minimize cost to such entities;

6 27. To provide incentive awards to employees for participating
7 in voluntary wellness programs which result in improved health.
8 Incentive awards may be created by the Wellness Council set forth in
9 Section 1302 of this title;

10 28. To establish a county employee benefit program to encourage
11 outstanding performance in the workplace. Monies may be expended
12 for the purchase of recognition awards for presentation to an
13 employee or members of a work unit. Recognition awards may be
14 presented at a formal or informal ceremony, banquet, reception, or
15 luncheon, the cost of which may be expended from monies available in
16 the county department's or division's operating fund;

17 29. To trade in equipment to a vendor or on statewide contract
18 by acquiring used equipment values pursuant to subsection B of
19 Section 421.1 of this title;

20 30. To expend federal funds made available to a county of the
21 state through the federal Coronavirus Aid, Relief, and Economic
22 Security Act (CARES Act), Pub. L. 116-136, or similar relief funds
23 according to the permissible uses of the applicable federal
24 legislation or guidance issued by any federal agency thereof,

1 regardless of any lack of specific state statutory authorization to
2 perform the duties or functions for which the federal government has
3 provided the funds. The expenditure of the funds in accordance with
4 the federal legislation or guidance issued by any federal agency
5 thereof shall be at the discretion of the board of county
6 commissioners.

7 The receipt of funding through the CARES Act or similar relief
8 funds shall not be considered a supplemental appropriation and shall
9 be exempt from the requirements of Section 1420 of this title. In
10 the event the period allotted for expenditure of federal funds
11 crosses fiscal years, such funds shall not be considered revenue
12 when setting the county's budget for the next fiscal year; and

13 31. To enter into intergovernmental cooperative agreements
14 which shall include shared services, with local governmental units
15 within this state pursuant to the provisions of the Interlocal
16 Cooperation Act, Section 1002 et seq. of Title 74 of the Oklahoma
17 Statutes.

18 B. The county commissioners of a county or, in counties where
19 there is a county budget board, the county budget board may
20 designate money from general county funds for the designated purpose
21 of drug enforcement and drug abuse prevention programs within the
22 county.

23 C. When any lease or lease purchase is made on behalf of the
24 county by the board pursuant to the provisions of this section, the

1 county shall be allowed to have trade in values for transactions
2 involving the Oklahoma Central Purchasing Act.

3 D. The board of county commissioners or, in counties where
4 there is a county budget board, the county budget board may
5 designate money from general county funds for the designated purpose
6 to provide, contract for, or support social services programs.
7 Nothing in this subsection shall be construed to require a county to
8 provide such services.

9 E. In order to timely comply with the Oklahoma Vehicle License
10 and Registration Act with regard to county vehicles, the board of
11 county commissioners may, by resolution, create a petty cash
12 account. The board of county commissioners may request a purchase
13 order for petty cash in an amount necessary to pay the expense of
14 license and registration fees for county motor vehicles. Any
15 balance in the petty cash account after the license and registration
16 fees have been paid shall be returned to the account or fund from
17 which the funds originated. The county purchasing agent shall be
18 the custodian of the petty cash account, and the petty cash account
19 shall be subject to audit.

20 ~~E.~~ F. When the board of county commissioners approves an
21 express trust, pursuant to Sections 176 through 180.4 of Title 60 of
22 the Oklahoma Statutes, for the purpose of operating a county jail,
23 the trustees of the public trust may appoint commissioned peace
24 officers, certified by the Council on Law Enforcement Education and

1 Training, to provide security for inmates that are required to be
2 transported outside of the detention facility, and investigate
3 violations of law within the detention facility. Other personnel
4 necessary to operate the jail may be employed and trained or
5 certified as may be required by applicable state or federal law.

6 SECTION 2. This act shall become effective November 1, 2026.
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